

OBC, EWS AND SOCIAL MOBILITY

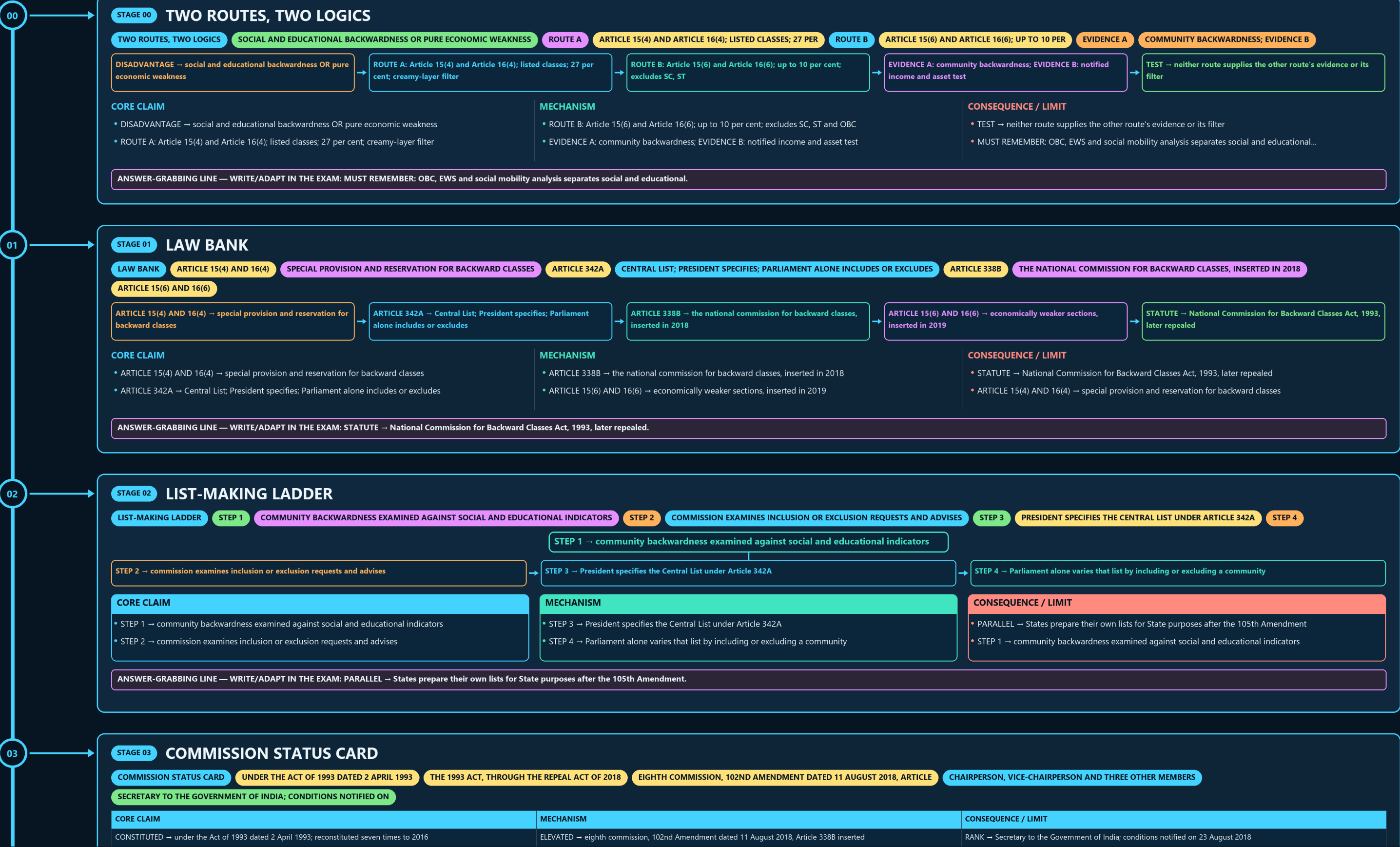
TWO ROUTES, TWO LOGICS → LAW BANK → LIST-MAKING LADDER → COMMISSION STATUS CARD → CREAMY-LAYER TEST → AMENDMENT AND JUDGMENT SEQUENCE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g3 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PARALLEL → States prepare their own lists for State purposes after the 105th Amendment.

03

STAGE 03 COMMISSION STATUS CARD

COMMISSION STATUS CARD

UNDER THE ACT OF 1993 DATED 2 APRIL 1993

THE 1993 ACT, THROUGH THE REPEAL ACT OF 2018

EIGHTH COMMISSION, 102ND AMENDMENT DATED 11 AUGUST 2018, ARTICLE

CHAIRPERSON, VICE-CHAIRPERSON AND THREE OTHER MEMBERS

SECRETARY TO THE GOVERNMENT OF INDIA; CONDITIONS NOTIFIED ON

CORE CLAIM

CONSTITUTED → under the Act of 1993 dated 2 April 1993; reconstituted seven times to 2016
REPEALED → the 1993 Act, through the Repeal Act of 2018 dated 14 August 2018

MECHANISM

ELEVATED → eighth commission, 102nd Amendment dated 11 August 2018, Article 338B inserted
COMPOSITION → Chairperson, Vice-Chairperson and three other Members

CONSEQUENCE / LIMIT

RANK → Secretary to the Government of India; conditions notified on 23 August 2018
CONSTITUTED → under the Act of 1993 dated 2 April 1993; reconstituted seven times to 2016

CORE CLAIM

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CONSEQUENCE / LIMIT

- RANK → Secretary to the Government of India; conditions notified on 23 August 2018
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RANK → Secretary to the Government of India; conditions notified on 23 August 2018.

04

STAGE 04 CREAMY-LAYER TEST

CREAMY-LAYER TEST

LIMB 1 STATUS

NOTIFIED PARENTAL SERVICE AND STATUS CATEGORIES EXCLUDE THE APPLICANT

LIMB 2 INCOME

CEILING OF ₹8 LAKH APPLIED OVER THREE CONSECUTIVE YEARS

SALARY INCOME AND AGRICULTURAL-LAND INCOME ARE NOT SIMPLY CLUBBED

THE FILTER RUNS INSIDE THE OTHER BACKWARD CLASSES ONLY

TRANSFERRING THE FILTER TO SCHEDULED CASTE OR SCHEDULED TRIBE

CORE CLAIM

LIMB 1 STATUS → notified parental service and status categories exclude the applicant
LIMB 2 INCOME → ceiling of ₹8 lakh applied over three consecutive years

MECHANISM

EXCLUSIONS → salary income and agricultural-land income are not simply clubbed in
SCOPE → the filter runs inside the other backward classes only

CONSEQUENCE / LIMIT

ERROR → transferring the filter to Scheduled Caste or Scheduled Tribe reservation
LIMB 1 STATUS → notified parental service and status categories exclude the applicant

CORE CLAIM

- LIMB 1 STATUS → notified parental service and status categories exclude the applicant
- LIMB 2 INCOME → ceiling of ₹8 lakh applied over three consecutive years

MECHANISM

- EXCLUSIONS → salary income and agricultural-land income are not simply clubbed in
- SCOPE → the filter runs inside the other backward classes only

CONSEQUENCE / LIMIT

- ERROR → transferring the filter to Scheduled Caste or Scheduled Tribe reservation
- LIMB 1 STATUS → notified parental service and status categories exclude the applicant

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ERROR → transferring the filter to Scheduled Caste or Scheduled Tribe reservation.

05

STAGE 05 AMENDMENT AND JUDGMENT SEQUENCE

AMENDMENT AND JUDGMENT SEQUENCE

INDRA SAWHNEY UPHOLDS 27 PER CENT, MANDATES CREAMY LAYER

102ND AMENDMENT INSERTS ARTICLE 338B AND ARTICLE 342A; THE

103RD AMENDMENT INSERTS ARTICLE 15(6) AND ARTICLE 16(6) FOR

MARATHA RESERVATION READING CENTRALISES LIST-MAKING; 105TH AMENDMENT RESTORES STATES

JANHIT ABHIYAN UPHOLDS THE ECONOMIC CRITERION BY A MAJORITY

CLOSE DISTINCTION

OBC IS NOT A SYNONYM FOR POVERTY, EWS IS

1992 → Indra Sawhney upholds 27 per cent, mandates creamy layer, states the 50 per

2018 → 102nd Amendment inserts Article 338B and Article 342A; the 1993 Act is repealed

2019 → 103rd Amendment inserts Article 15(6) and Article 16(6) for economic weakness

2021 → Maratha reservation reading centralises list-making; 105th Amendment restores States

2022 → Janhit Abhiyan upholds the economic criterion by a majority of three to two

CORE CLAIM

- 1992 → Indra Sawhney upholds 27 per cent, mandates creamy layer, states the 50 per cent ceiling
- 2018 → 102nd Amendment inserts Article 338B and Article 342A; the 1993 Act is repealed

MECHANISM

- 2019 → 103rd Amendment inserts Article 15(6) and Article 16(6) for economic weakness
- 2021 → Maratha reservation reading centralises list-making; 105th Amendment restores States

CONSEQUENCE / LIMIT

- 2022 → Janhit Abhiyan upholds the economic criterion by a majority of three to two
- CLOSE DISTINCTION: OBC is not a synonym for poverty, EWS is not an OBC sub-category,...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: OBC is not a synonym for poverty, EWS is not an OBC sub-category,.

06

STAGE 06 ECONOMIC-CRITERION CARD

ECONOMIC-CRITERION CARD

DEPARTMENT OF PERSONNEL AND TRAINING NOTIFICATION DATED 31 JANUARY

GROSS ANNUAL FAMILY INCOME BELOW ₹8 LAKH

FAMILY MUST NOT OWN FIVE ACRES OR MORE OF

NO RESIDENTIAL FLAT OF 1,000 SQ FT OR MORE

NO PLOT OF 100 SQ YARDS IN A NOTIFIED

CORE CLAIM

NOTIFIED → Department of Personnel and Training notification dated 31 January 2019
INCOME → gross annual family income below ₹8 lakh

MECHANISM

LAND → family must not own five acres or more of agricultural land
BUILT → no residential flat of 1,000 sq ft or more

CONSEQUENCE / LIMIT

PLOT → no plot of 100 sq yards in a notified municipality or 200 sq yards elsewhere
NOTIFIED → Department of Personnel and Training notification dated 31 January 2019

CORE CLAIM

- NOTIFIED → Department of Personnel and Training notification dated 31 January 2019

MECHANISM

- LAND → family must not own five acres or more of agricultural land

CONSEQUENCE / LIMIT

- PLOT → no plot of 100 sq yards in a notified municipality or 200 sq yards elsewhere

06

STAGE 06 ECONOMIC-CRITERION CARD

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MECHANISM

- LAND → family must not own five acres or more of agricultural land
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CONSEQUENCE / LIMIT

PLOT → no plot of 100 sq yards in a notified municipality or 200 sq yards elsewhere

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CONSEQUENCE / LIMIT

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- NOTIFIED → Department of Personnel and Training notification dated 31 January 2019

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PLOT → no plot of 100 sq yards in a notified municipality or 200 sq yards elsewhere.

07

STAGE 07 SAME FIGURE, DIFFERENT TEST

SAME FIGURE, DIFFERENT TEST

CREAMY LAYER

₹8 LAKH SINCE SEPTEMBER 2017; THREE CONSECUTIVE YEARS

NOTIFIED PARENTAL SERVICE AND STATUS CATEGORIES; SALARY AND LAND

ECONOMIC CRITERION

₹8 LAKH SINCE JANUARY 2019; GROSS ANNUAL FAMILY INCOME

NOTIFIED LAND, FLAT AND PLOT ASSET LIMITS, UNCHANGED SINCE

IDENTICAL ARITHMETIC PROVES NOTHING ABOUT IDENTICAL ELIGIBILITY

CORE CLAIM

CREAMY LAYER → ₹8 lakh since September 2017; three consecutive years

PLUS → notified parental service and status categories; salary and land income excluded

CORE CLAIM

- CREAMY LAYER → ₹8 lakh since September 2017; three consecutive years
- PLUS → notified parental service and status categories; salary and land income excluded

MECHANISM

ECONOMIC CRITERION → ₹8 lakh since January 2019; gross annual family income

PLUS → notified land, flat and plot asset limits, unchanged since 2019

MECHANISM

- ECONOMIC CRITERION → ₹8 lakh since January 2019; gross annual family income
- PLUS → notified land, flat and plot asset limits, unchanged since 2019

CONSEQUENCE / LIMIT

RULE → identical arithmetic proves nothing about identical eligibility

CREAMY LAYER → ₹8 lakh since September 2017; three consecutive years

CONSEQUENCE / LIMIT

- RULE → identical arithmetic proves nothing about identical eligibility
- CREAMY LAYER → ₹8 lakh since September 2017; three consecutive years

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULE → identical arithmetic proves nothing about identical eligibility.

08

STAGE 08 JUDGMENT SPLIT

JUDGMENT SPLIT

RESERVATION FOR ECONOMICALLY WEAKER SECTIONS IS CONSTITUTIONALLY VALID

AN ECONOMIC CRITERION ALONE CAN GROUND AFFIRMATIVE ACTION

EXCEEDING THE CEILING FOR A NEW CATEGORY DOES NOT

EXCLUDING THE RESERVED CATEGORIES FROM A NEW BENEFIT DENIES

THREE TO TWO, SO THE DISAGREEMENT IS PART OF

CORE CLAIM

- HELD → reservation for economically weaker sections is constitutionally valid
- MAJORITY → an economic criterion alone can ground affirmative action

MECHANISM

MAJORITY → exceeding the ceiling for a new category does not breach the basic structure

DISSENT → excluding the reserved categories from a new benefit denies substantive equality

CONSEQUENCE / LIMIT

- MARGIN → three to two, so the disagreement is part of the holding's meaning
- HELD → reservation for economically weaker sections is constitutionally valid

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MARGIN → three to two, so the disagreement is part of the holding's meaning.

09

STAGE 09 DISTRIBUTION PROBLEM

DISTRIBUTION PROBLEM

27 PER CENT FOR THE OTHER BACKWARD CLASSES AS

CONCENTRATION OF BENEFIT IN RELATIVELY ADVANCED COMMUNITIES WITHIN THE

SUB-CATEGORISATION OF THE QUOTA AMONG SUB-GROUPS

EXAMINED BY

THE COMMISSION SET UP IN 2017; IMPLEMENTATION PENDING AS

BACKWARDNESS AND REPRESENTATION DATA FOR EACH SUB-GROUP

QUOTA → 27 per cent for the other backward classes as a single undivided block

OBSERVED → concentration of benefit in relatively advanced communities within the block

PROPOSAL → sub-categorisation of the quota among sub-groups

EXAMINED BY → the commission set up in 2017; implementation pending as of mid-2026

CORE CLAIM

- QUOTA → 27 per cent for the other backward classes as a single undivided block
- OBSERVED → concentration of benefit in relatively advanced communities within the block

MECHANISM

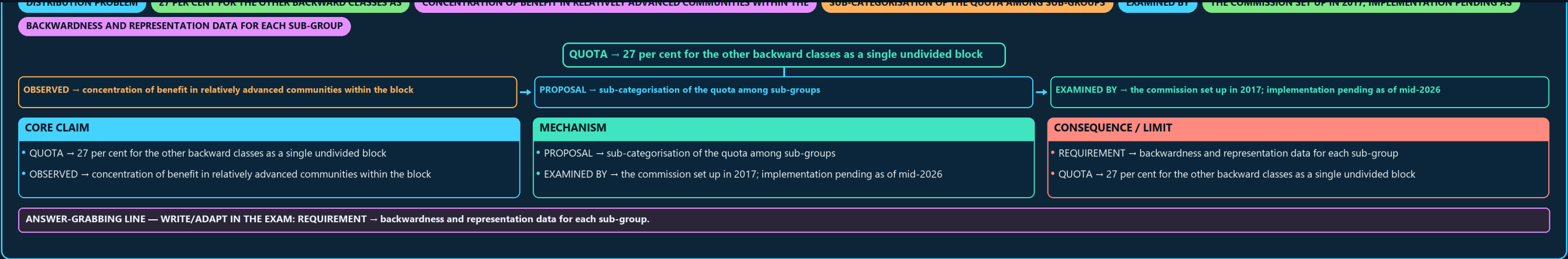
PROPOSAL → sub-categorisation of the quota among sub-groups

EXAMINED BY → the commission set up in 2017; implementation pending as of mid-2026

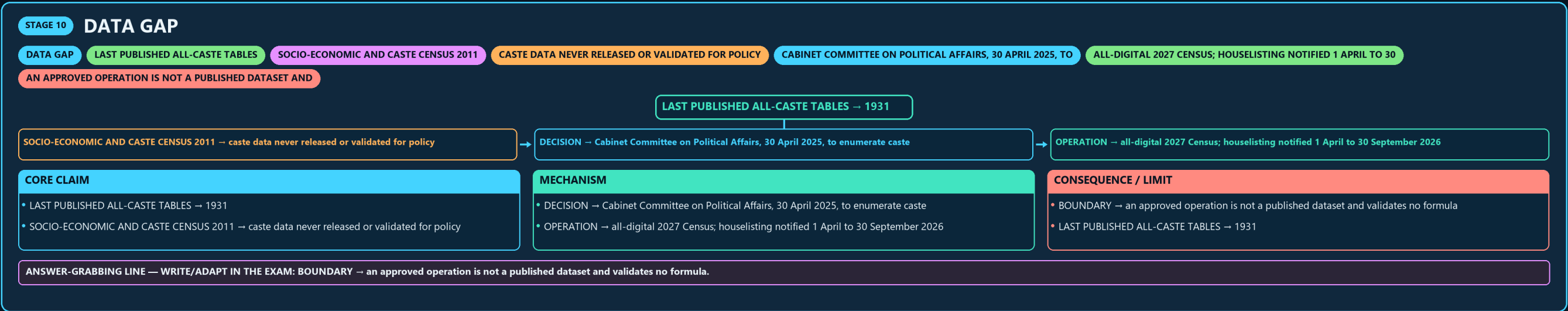
CONSEQUENCE / LIMIT

- REQUIREMENT → backwardness and representation data for each sub-group
- QUOTA → 27 per cent for the other backward classes as a single undivided block

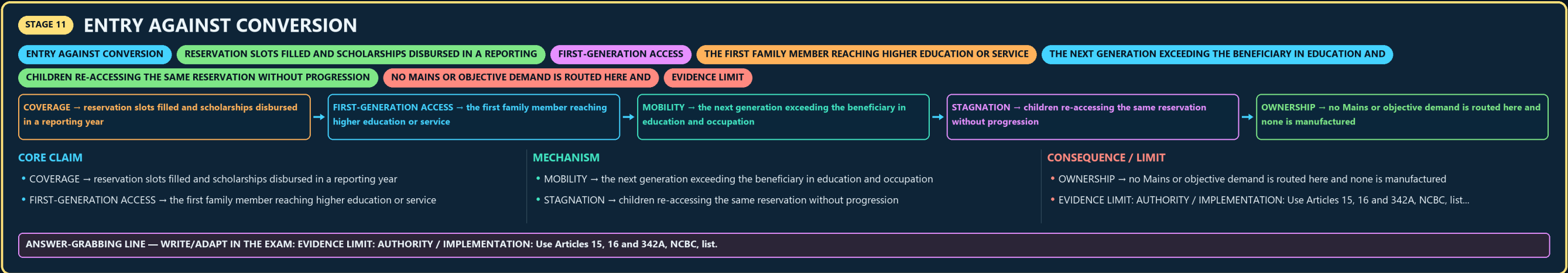
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: REQUIREMENT → backwardness and representation data for each sub-group.



10



11



E

